

Court No. - 21

Case :- WRIT - C No. - 8903 of 2024

Petitioner :- Smt Nishu Devi

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Suhail Ahmad Ansari

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The argument is that the notice of provisional assessment was issued on 27.02.2024 and on the same day, another notice was issued to the petitioner stating that under final assessment, a sum of Rs. 1,42,556/- (rupees one lac forty two thousand five hundred fifty six) is to be paid by the petitioner.

2. Learned counsel for the petitioner submits that there is no final assessment order in existence, but still the impugned notice dated 27.02.2024 was issued.

3. We are daily coming across similar cases, where without following the procedure prescribed under clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005, the authorities are initiating recovery proceedings despite the fact that this Court had, in the past, expressed its concern about the same and also invited the attention of the Managing Director of the concerned Discom.

4. Let Managing Director of concerned Discom as well as Executive Engineer, who had passed the order, file their affidavits explaining how notice dated 27.02.2024 could be sustained.

5. List as fresh on 02.04.2024.

6. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned notice of provisional assessment and the order dated 29.02.2024.

7. Learned counsel for the respondent-Electricity Department shall communicate the instant order to the concerned official for due compliance.

Order Date :- 19.3.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra,J.

1. Despite specific order requiring the Managing Director to explain how the impugned notice dated 27.02.2024 could be sustained, the affidavit has not been filed.

2. Learned counsel for the respondent-Electricity Department tried to explain the default by submitting that some affidavit was filed by the Managing Director in a matter listed yesterday, which, in our opinion, would not be proper compliance of the order passed in the instant case.

3. From the affidavit filed by the concerned Executive Engineer we find that the procedure prescribed under the Code for making final assessment has not been followed.

4. The alleged final assessment order dated 27.02.2024 mentions that in case the petitioner has any objection against the same, it may be filed by her and whereupon personal hearing would be afforded to her and final assessment order would be dispatched to her under registered cover. Upon such liberty having been given to the petitioner, the order dated 27.02.2024 cannot be treated to be final assessment order. It is noteworthy that the provisional assessment notice was issued on 13.04.2022. giving time to the petitioner to file objections and, therefore, once again giving liberty to the petitioner to file objection while passing final assessment is contrary to the procedure prescribed.

5. The Managing Director shall in his affidavit explain the aforesaid anomaly.

6. List as fresh on 18.04.2024.

7. Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 2.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The petitioner has challenged the orders of provisional and final assessment dated 27.02.2024 and the office memorandum dated 29.02.2024 issued on basis of the order of final assessment.
2. In compliance of our previous order, the Managing Director of the concerned DISCOM has filed his affidavit and it is stated therein that a notice was issued to the concerned officer seeking his explanation as to how order of provisional and final assessment could be passed on the same date. Copy of the notice has been annexed as Annexure-1 to his affidavit.
3. It is stated in para-11 of the affidavit that the impugned proceedings have been withdrawn and the department will now proceed afresh as per the procedure prescribed under the Electricity Supply Code, 2005 and the Electricity Act, 2003.
4. In view of the above, the grievance of the petitioner stands redressed.
5. The petition is **disposed of** with liberty to the respondents to pass fresh order strictly in accordance with law.
6. The inspection report shall be made available to the petitioner within fourty hours from the date any application in this behalf is filed by her before the concerned Executive Engineer.

Order Date :- 18.4.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)